

Dissertations and Theses: Common Copyright and Fair Use Questions

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Before we get started

Due to large interest and attendance:

- a) We can take questions during the session if they need to be answered within the context of the current slide/subject matter
 - i) If you ask a question during the session, please put it in chat
- b) When in doubt, please save questions for the end
- c) For niche questions or questions about a particular case/scenario, please contact Ginny or Melissa separately (contact information will be provided again at the end).

Before we get started

The information presented here is intended for informational purposes and should not be construed as legal advice. If you have specific legal questions or need legal advice that pertains to the University of Colorado Boulder, you should contact CU University Counsel: <https://www.cu.edu/universitycounsel>.

If your questions do not pertain to the university, you may need to contact your personal legal representative.

What We'll Cover

1. Process and timing for your dissertation/thesis submission
2. Using materials from other publications in your dissertation/thesis - and other fair use concerns
3. Reusing material for your thesis/dissertation, and for future publications
4. Do you need to register copyright for your dissertation/thesis?
5. Sharing your dissertation/thesis openly, and the options available
6. Requesting an embargo - How and Why

Process and timing for your dissertation/thesis submission

Thesis/Dissertation submission

- Upload thesis directly to UMI/Proquest by the posted deadline for the semester in which your degree will be awarded
 - Attach approval of your thesis committee via the Thesis Approval Form
- Make publishing and copyright decisions, accept publication agreements, etc.
- Review and acceptance by Graduate School, release to ProQuest after degree is awarded
- Additional information available on Graduate School [website](#)
- Best practice: begin thinking about copyright and fair use issues early!

**Using materials from other
publications in your
dissertation/thesis**

Evaluating a resource for use in
Theses/Dissertations
(beyond academic citation/quoting)

Is the work in the
public domain?

Yes

Use freely without
permissions

No

Is the work
copyrightable?

No

Use freely without
permissions

Yes

Is the work under a
Creative Commons
license?

No

Make a fair use
evaluation

Yes

Use according to
the conditions of
the license

Purpose and
character of use



Nature of the
copyrighted work



Amount and
substantiality of
the portion used



Effect of use on
potential market of
the work

I can't justify fair use

Seek permission from the
author/creator/copyright
holder

Copyright

While copyright protects your rights over original content and creative expression, it also covers other authors' right to:

- Reproduce
- Perform
- Prepare
- Display
- Distribute, and
- Grant permission for others to use the work

How can I be sure I'm able to lawfully use others' original work?

1. It's in the Public Domain

- Anything published prior to 1926 (next year, 1927, etc...)
- Published between 1924-1977 - it depends

2. It isn't covered by copyright to begin with

- Copyright does not protect facts, ideas, systems, or methods of operation, although **it may protect the way these things are expressed.**
- Key is **original expression**
- Covered: poetry, novels, movies, songs, computer software, and architecture, academic articles and monographs
- Not covered: Phrases, data, facts, ideas, methods of operation

More information about the public domain:

<https://www.colorado.edu/libraries/copyright-information/public-domain>

Or (3) It's a work under a Creative Commons license

These works are still under copyright, but are marked with one of six different licenses that indicate for users the conditions of use.

Attribution of a work under a Creative Commons license is always required.

You may or may not be able to change, adapt, or use that work for profit, depending on the conditions of the license.



Learn more about Creative Commons: <https://libguides.colorado.edu/cclicenses>

For all other scenarios, use Fair Use or Seek Permissions

FOUR FACTORS of Fair Use:

- 1) Purpose and character of use
- 2) Nature of the copyrighted work
- 3) Amount and substantiality of the portion used
- 4) Effect of the use upon the potential market of the work

All four factors are weighed simultaneously when evaluating a fair use case

Maintain documentation of your reasoning



More information about Fair Use: <https://www.colorado.edu/libraries/copyright-information/fair-use>

Text vs. Images/Graphs/Figures

Text:

Ex: A whole poem

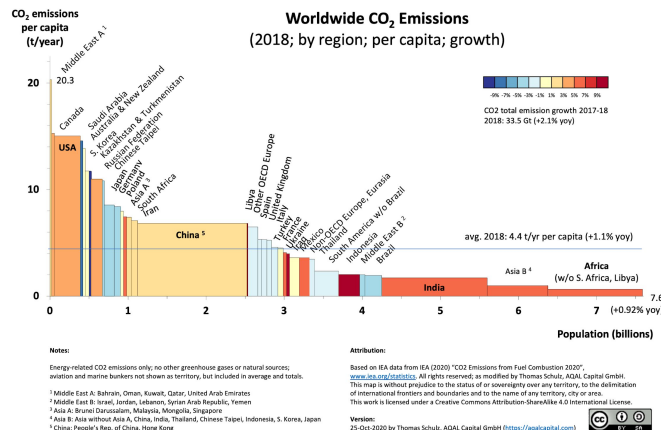
Fair Use or not Fair Use?

Ex: Quoting extensively from another source

Fair Use or not Fair Use?

Images/Graphs/Figures:

Photographs/Art/Animation usually need permissions



When can you use data visualized or represented in another study?

Big Fair Use Questions:

- 1) Does this use satisfy or replace the desire for the original work?
- 2) Does this use make it so someone would not need to purchase or access the copyrighted work on their own?
- 3) Are you critiquing, satirizing, or otherwise transforming what you are using in some way?
- 4) Am I only using what is needed to make my point?

Guidance on seeking permissions

If the work is copyrightable, not in the public domain, and you cannot make a case for Fair Use.

- Contact the copyright holder
- For books and periodicals: [Copyright Clearance Center](#)
- Record and save all communications

Questions?: copyright@colorado.edu



More information about permissions:

<https://www.colorado.edu/libraries/copyright-information/obtain-copyright-permission>

**Reusing material for your
thesis/dissertation, and for future
publications**

Always look at publisher policies

1. Nearly all publishers have specific policies regarding the reuse of materials from theses and dissertations, which cover:
 - a. How you can use work already published in that journal for a thesis or dissertation, and
 - b. How you can use work already published in a thesis or dissertation for a journal article with that publisher
2. Re-using material from a thesis/dissertation is VERY common
3. Norms for this practice will vary by discipline and format

Example: Prior publication

Elsevier Policy on prior publication

Elsevier welcomes submissions from authors and will consider these for publication where work has not previously been published and is not under consideration for publication elsewhere. Elsevier does not view the following prior uses of a work as prior publication:

- Publication in the form of an abstract
- Publication as an academic thesis
- Publication as an electronic preprint

Some journals may also consider for publication works that have been previously published as part of a published lecture. Further information on each journal's prior publication policies is included within the journal's Guide for Authors.

<https://www.elsevier.com/editors-update/story/publishing-ethics/clarification-of-our-policy-on-prior-publication>

Example: Re-use of publication

Springer:

Authors have the right to reuse their article's Version of Record, in whole or in part, in their own thesis. Additionally, they may reproduce and make available their thesis, including Springer Nature content, as required by their awarding academic institution. Authors must properly cite the published article in their thesis according to current citation standards.

Material from: 'AUTHOR, TITLE, JOURNAL TITLE, published [YEAR], [publisher - as it appears on our copyright page]'

Taylor & Francis:

After assigning copyright, you will still retain the right to:

- Include your article [Author's Original Manuscript \(AOM\)](#) or [Accepted Manuscript\(AM\)](#), depending on the embargo period in your thesis or dissertation. The [Version of Record](#) cannot be used. For more information about manuscript versions and how you can use them, please see our [guide to sharing your work](#).

<https://www.springer.com/us/rights-permissions/obtaining-permissions/882>

<https://authorservices.taylorandfrancis.com/publishing-your-research/moving-through-production/copyright-f-or-journal-authors/>

What about re-formatting journal articles for a chapter?

- 1) If you publish Open Access and/or under a Creative Commons license, you retain copyright and the ability to re-distribute the content as you wish
- 2) For other scenarios, publishers may require the Version of Record be included in the thesis, or another version
 - a) See previous examples of Springer and Taylor & Francis

What about more creative disciplines?

E.g. Creative Writing and other MFA programs

- Potential or actual publisher policies will likely be more stringent.
- Make sure to consult with the publisher and read contracts carefully
- Put an embargo on your thesis/dissertation until you know more (more on this later!)



**Do you need to register
copyright for your
dissertation/thesis?**

Why would I want to register my copyright?

1. You do not NEED to register your Copyright with the U.S. Copyright Office

However,

2. You may want to register your copyright for several reasons:
 - a. ProQuest will do it for you (for a \$75 fee) when you submit your work, so this is a convenient time to do it
 - b. ProQuest has an agreement with Library of Congress to ensure that registered dissertations are in their catalog
 - c. If you have concerns about any part of your thesis/dissertation being used or distributed by others without permission, you should definitely register

**Sharing your dissertation/thesis
openly, and the options
available**

Option #1: “Traditional”

- Dissertation/Theses is available on a subscription basis through ProQuest
 - Those with paid subscription access to the ProQuest Theses and Dissertations database can access
 - Without a subscription, users can order an individual thesis/dissertation for a fee
- If you choose to embargo, or delay access, it will not be available through ProQuest until the time you indicate.



Option # 2: Open Access

Open Access (OA) is a mechanism by which research outputs are distributed online, free of cost or other access barriers.

ProQuest submission system provides two open access options:

- 1) Publish your work OA with ProQuest (for a \$95 fee)
- 2) Submit your work to CU Scholar (for free!)

This option also includes an optional embargo



CU Scholar - the university's institutional repository

<https://scholar.colorado.edu/>

CU Scholar is the university's open access repository that supports the research and teaching mission of the University of Colorado Boulder. It is intended to serve as a platform for preserving and providing public access to the research activities of members of the CU Boulder community.

If desired, you can choose an embargo period for the content

Theses/Dissertations are some of the most downloaded content we host

 University of Colorado **Boulder**

CU Scholar
UNIVERSITY LIBRARIES

What are the benefits of sharing openly?

- Impact
 - Studies show 3x the downloads of non-OA and a 30-50% citation advantage
- Collaboration
 - Easier for potential collaborators to find your work
- Equity
 - For the public and institutions around the world who don't have access to subscription content
- Innovation
 - Faster distributions and response to findings



Requesting an embargo

How and Why

Circumstances for an Embargo

1. The content of your thesis/dissertation is not yet published, and you are concerned that publishers may not be interested in your work if it is already available elsewhere.
2. You are already working with a publisher, and they require an embargo of your thesis/ dissertation
3. Your thesis/dissertation advisor may recommend an embargo for a variety of reasons (patent pending, etc.)

Setting a time period for/changing your embargo period

- Setting an embargo period for your thesis/dissertation will be an option when you submit to ProQuest
 - Any embargo period selected will also apply to CU Scholar if you submit your work to the repository
- You may select up to a two year embargo without additional approval
 - After considering the circumstances necessitating an embargo, select the most appropriate length of time
- If extenuating circumstances lead you to request a longer embargo, contact the Graduate School directly with information, copying advisor
- The embargo period may be changed
 - Work directly with ProQuest, who will request permission from CU Boulder

Further Reading:

[Copyright and Your Dissertation or Thesis: Ownership, Fair Use, and Your Rights and Responsibilities](#) by Kenneth Crews, Director of the Copyright Advisory Office at Columbia University

Thank you!

Questions or comments?

Questions about copyright, fair use,
open access?

Contact Melissa Cantrell:

melissa.cantrell@colorado.edu

Or

copyright@colorado.edu

Questions about process, policies,
deadlines?

Contact Ginny McNellis:

ginny.mcnellis@colorado.edu